UK Health Security Agency

Data Sharing Framework Data Agreement (controller to controller) (UK GDPR and DPA 2018) in relation to sharing personal data for communicable disease and other risks to public health

Framework Agreement Reference: LondonBoroughofCamden_16112022

CONTENTS

CLAUSE

1. Interpretation 1
2. Purpose 4
3. Compliance with the Data Protection Legislation 4
4. Shared Personal Data 4
5. Lawful, fair and transparent processing 5
6. Data quality 5
7. Data Subjects' rights 5
8. Data retention and deletion 5
9. Transfers 6
10. Security and training 6
11. Personal data breaches and reporting procedures 7
12. Review of Agreement 7
13. Term and Termination 8
14. Resolution of disputes with Data Subjects or the Supervisory Authority 9
15. Warranties 9
16. Allocation of cost 10
17. Limitation of liability 10
18. Third party rights 10
19. Variation 11
20. Waiver 11
21. Severance 11
22. Changes to the applicable law 11
23. No partnership or agency 11
24. Entire agreement 11
25. Further assurance 12
26. Force majeure 12
27. Rights and remedies 12
28. Notice 12
29. Governing law 13
30. Assignment and novation 13

SCHEDULE

Schedule 1 Key legislative provisions and authoritative guidance 14
Schedule 2 Sample Template Data Sharing Addendum 15
Schedule 3 Appropriate technical and organisational security measures 16
Schedule 4 Deletion Procedure 18

DATED as of the date of last signature

PARTIES

(1) **UK Health Security Agency,** an executive agency of the Department of Health and Social Care, located at Nobel House, 17 Smith Square, London, SW1P 3HX **(hereinafter referred to as "UKHSA" or "Data Discloser");**

(2) **London Borough of Camden,** whose registered office is located at 5 Pancras Square, 5 Pancras Road, London, N1C 4AG (**herein after referred to as "Data Receiver")**

(3) During the Term of this Agreement it may occur that the Data Receiver transfers its data to the Data Discloser in which case the terms of this Agreement shall apply as if, in relation to such data, the Data Receiver were the data discloser and the Data Discloser were the data receiver.

each a **Party** and together the **Parties.**

BACKGROUND

(A) The Parties wish to enter into a data sharing framework agreement to create a framework of terms and conditions that will apply on each and every occasion one Party wishes to transfer Shared Personal Data to the other Party.

(B) This is a free-standing Agreement that does not incorporate commercial business terms established by the Parties under separate commercial arrangements.

(C) The terms and conditions of this Agreement will govern the relationship between the Parties in respect of Shared Personal Data and provide a mechanism whereby the Parties may enter into data sharing arrangements in response to a public heath incident or event in relation to communicable disease and other risks to public health through the execution of a Data Sharing Addendum (DSA).

(D) This Agreement including associated DSAs will ensure all Parties can carry out their statutory functions in line with Regulation 3 of The Health Service (Control of Patient Information) Regulations 2002 in a lawful, auditable and transparent manner.

(E) The Data Receiver agrees to use the Personal Data within the EEA on the terms set out in this Agreement.

AGREED TERMS

1. Interpretation

The following definitions and rules of interpretation apply in this Agreement.

1.1 Definitions:

Agreed Purpose: has the meaning given to it in clause 2 of this Agreement and as set out in each fully executed Data Sharing Addendum (DSA).

Agreement: this data sharing framework agreement, which is a free-standing document that does not incorporate commercial business terms established by the Parties under separate commercial arrangements.

Business Day: a day other than a Saturday, Sunday or public holiday in the UK when banks in London are open for business.

Commencement Date: the date when the Agreement has been signed by all of the Parties.

Data Sharing Addendum or DSA: the Data Sharing Addendum agreed between the Parties in accordance with Clause 2 (Purpose) for the Agreed Purpose, containing detailed information about the type of Personal Data to be shared, the Agreed Purpose for sharing and using the Personal Data, any special conditions for use or reuse of the Shared Personal Data and the related matters listed in the template DSA set out in Schedule 2.

Data Sharing Code: The Information Commissioner's Data Sharing Code of Practice issued in September 2021, as updated or amended from time to time.

Data Protection Legislation: all applicable data protection and privacy legislation in force from time to time in the UK including the General Data Protection Regulation as enacted into English law by the EU (Withdrawal) Act 2018 and as amended by the Data Protection Act 2018 and Privacy and Electronic Communications (Amendments etc) (EU Exit) Regulations 2019 (**UK GDPR**); the Data Protection Act 2018 (**DPA 2018**); the Privacy and Electronic Communications Regulations 2003and any other legislation and regulatory requirements in force from time to time which apply to a Party relating to the use of Personal Data (including, without limitation, the privacy of electronic communications) and the guidance and codes of practice issued by the Supervisory Authority.

EEA: The European Economic Area as established via the Agreement on the European Economic Area, an international agreement which enables the extension of the European Union's single market to member states of the European Free Trade Association.

Personal Data Breach: a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to the Shared Personal Data.

Shared Personal Data: the Personal Data and Special Categories of Personal data to be shared between the Parties pursuant to a fully executed DSA under the terms of this Agreement and detailed within each fully executed DSA.

Special Categories of Personal Data: the categories of Personal Data set out in Article 9(1) of the UK GDPR.

Subject Access Request: the exercise by a Data Subject of his or her rights under Article 15 of the UK GDPR and the DPA 2018.

Supervisory Authority: the relevant data protection authority in the territories where the Parties to this Agreement are established.

Term: the period commencing on the Commencement Date and ending on termination of this Agreement under clause 13.2 or clause 13.5.

1.2 **Controller**, **Processor**, **Data Subject** and **Personal Data**, **Processing** and "appropriate technical and organisational measures" shall have the meanings given to them in the Data Protection Legislation.

1.3 Clause, schedule and paragraph headings shall not affect the interpretation of this Agreement.

1.4 The schedules form part of this Agreement and shall have effect as if set out in full in the body of this Agreement. Any reference to this Agreement includes the schedules.

1.5 Unless the context otherwise, requires, words in the singular shall include the plural and in the plural shall include the singular.

1.6 A reference to a company shall include any company, corporation or other body corporate, wherever and however incorporated or established.

1.7 A reference to a statute or statutory provision shall include all subordinate legislation made from time to time under that statute or statutory provision.

1.8 References to clauses and schedules are to the clauses and schedules of this Agreement and references to paragraphs are to paragraphs of the relevant Schedule.

1.9 Any words following the terms **including**, **include**, **in particular** or **for example** or any similar phrase shall be construed as illustrative and shall not limit the generality of the related general words.

1.10 In the case of any ambiguity between any provision contained in the body of this Agreement and any provision contained in the DSA, schedules or appendices, the provision in the body of this Agreement shall take precedence.

1.11 Unless the context otherwise requires, any reference to European Union law that is directly applicable or directly effective in the UK at any time is a reference to it as it applies England from time to time.

1.12 A reference to **writing** or **written** includes email.

1.13 Unless the context otherwise requires the reference to one gender shall include a reference to the other genders.

2. Purpose

2.1 This Agreement sets out the framework for the sharing of **Personal Data** when one **Controller** (the Data Discloser) discloses Personal Data to another **Controller** (the Data Receiver). It defines the principles and procedures that the Parties shall adhere to and the responsibilities the Parties owe to each other.

2.2 The Parties consider this data sharing necessary to fulfil their statutory duties in relation to public health and communicable disease surveillance.

2.3 Each time the Data Receiver is engaged to receive Shared Personal Data, a DSA shall be completed. The Parties shall assist each other to discuss and agree each DSA and both Data Receiver and Data Discloser shall sign the DSA once it has been agreed. Upon the execution of each DSA the terms and conditions agreed in the DSA shall be incorporated into this Agreement and shall not form a separate contract to it.

2.4 The Parties shall not process Shared Personal Data in a way that is incompatible with the purposes described in this Clause 2 and the DSA (**Agreed Purpose**).

2.5 Each Party shall appoint a single point of contact (**SPoC**) and delegated deputy who will work together to reach an agreement with regards to any issues arising from the data sharing and to actively improve the effectiveness of the data sharing initiative. The points of contact for each of the Parties are:

(a) [redacted], Head of Information Governance & Privacy, UKHSA

(b) [redacted], Public Health Intelligence Lead, London Borough of Camden

3. Compliance with the Data Protection Legislation

3.1 Each Party must ensure compliance with the Data Protection Legislation at all times during the Term of this Agreement.

3.2 Each Party has such valid registrations and paid such fees as are required by its Supervisory Authority which, by the time that the data sharing is expected to commence, covers the intended data sharing pursuant to this Agreement, unless an exemption applies.

4. Shared Personal Data

4.1 Further detail on the Shared Personal Data will be detailed in each fully executed DSA, together with any access and processing restrictions as agreed and established by the Parties.

4.2 The Shared Personal Data must not be irrelevant or excessive with regard to the Agreed Purpose.

5. Lawful, fair and transparent processing

5.1 Each Party shall ensure that it processes the Shared Personal Data fairly and lawfully during the Term of this Agreement.

5.2 Each Party shall ensure that it has legitimate grounds under the Data Protection Legislation for the processing of Shared Personal Data.

5.3 Each Party agrees that the legitimate grounds under the Data Protection Legislation for the processing of Shared Personal Data are:

(a) UK GDPR Article 6(1)(e) – the processing is necessary for the performance of the Parties' official tasks carried out in the public interest.

(b) UK GDPR Article 9(2)(i) – the processing is necessary for reasons of public interest in the area of public health.

(c) Data Protection Act 2018 – Schedule 1, Part 1 (3) – 'Public Health'

6. Data quality

6.1 The Data Discloser shall take all reasonable steps to ensure that the Shared Personal Data are accurate.

6.2 Shared Personal Data must be limited to the Personal Data described in each associated fully executed DSA to this Agreement.

7. Data Subjects' rights

7.1 The Parties each agree to provide such assistance as is reasonably required to enable the other Party to comply with requests from Data Subjects to exercise their rights under the Data Protection Legislation within the time limits imposed by the Data Protection Legislation.

7.2 The SPoC for each Party is responsible for maintaining a record of individual requests for information, the decisions made and any information that was exchanged. Records must include copies of the request for information, details of the data accessed and shared and where relevant, notes of any meeting, correspondence or phone calls relating to the request. The SPoC for each Party are detailed in clause 2.5.

8. Data retention and deletion

8.1 The Data Receiver shall not retain or process Shared Personal Data for longer than is necessary to carry out the Agreed Purpose.

8.2 Notwithstanding clause 8.1, the Parties shall continue to retain Shared Personal Data in accordance with any statutory or professional retention periods applicable in their respective areas of work and profession.

8.3 The Data Receiver shall ensure that any Shared Personal Data are returned to the Data Discloser or destroyed in accordance with the agreed Deletion Procedure set out in Schedule 4 in the following circumstances:

(a) on termination or expiry of the Agreement;

(b) on expiry of the Term of the DSA;

(c) once processing of the Shared Personal Data is no longer necessary for the purposes it was originally shared for, as set out in clause 2.3 and each DSA.

8.4 Following the deletion of Shared Personal Data in accordance with clause 8.3, the Data Receiver shall notify the Data Discloser that the Shared Personal Data in question has been deleted in accordance with the Deletion Procedure set out in Schedule 4 to this Agreement.

9. Transfers

9.1 For the purposes of this clause, transfers of Personal Data shall mean any sharing of Personal Data by the Data Receiver with a third party, and shall include, but is not limited to, the following:

(a) subcontracting the processing of Shared Personal Data;

(b) granting a third party controller access to the Shared Personal Data.

(c) third parties commissioned by either Party to share Personal Data as part of the Purpose.

9.2 If the Data Receiver appoints a third party Processor to process the Shared Personal Data it shall comply with Article 28 and Article 30 of the UK GDPR and shall remain liable to the Data Discloser for the acts and/or omissions of the Processor.

9.3 The Data Receiver shall not disclose or transfer Shared Personal Data outside the EEA.

10. Security and training

10.1 The Data Discloser shall only provide the Shared Personal Data to the Data Receiver by using secure methods as agreed and set out in Schedule 3.

10.2 The Parties undertake to have in place throughout the Term appropriate technical and organisational security measures to:

(a) prevent:

(i) unauthorised or unlawful processing of the Shared Personal Data; and

(ii) the accidental loss or destruction of, or damage to, the Shared Personal Data;

(b) ensure a level of security appropriate to:

(i) the harm that might result from such unauthorised or unlawful processing or accidental loss, destruction or damage; and

(ii) the nature of the Shared Personal Data to be protected.

10.3 The level of technical and organisational measures agreed by the Parties as appropriate as at the Commencement Date having regard to the state of technological development and the cost of implementing such measures is set out in Schedule 3. The Parties shall keep such security measures under review and shall carry out such updates as they agree are appropriate throughout the Term.

10.4 It is the responsibility of each Party to ensure that its staff members are appropriately trained to handle and process the Shared Personal Data in accordance with the technical and organisational security measures set out in Schedule 3 and the Data Protection Legislation, and have entered into confidentiality agreements relating to the processing of Personal Data.

10.5 The level, content and regularity of training referred to in clause 10.3 shall be proportionate to the staff members' role, responsibility and frequency with respect to their handling and processing of the Shared Personal Data.

11. Personal data breaches and reporting procedures

11.1 The Parties shall each comply with its obligation to report a Personal Data Breach to the appropriate Supervisory Authority and (where applicable) Data Subjects under Article 33 of the UK GDPR and shall each inform the other Party of any Personal Data Breach involving data shared under this Agreement irrespective of whether there is a requirement to notify any Supervisory Authority or Data Subject(s).

11.2 The Parties agree to notify each other and provide reasonable assistance as is necessary to each other to facilitate the handling of any Personal Data Breach in an expeditious and compliant manner.

12. Review of Agreement

12.1 The Parties shall review the effectiveness of this data sharing initiative every 12 months, having consideration to the aims and purposes set out in clause 2. The Parties shall continue, amend or terminate the Agreement depending on the outcome of this review.

12.2 The review of the effectiveness of this Agreement will involve:

(a) assessing whether the purposes for which the Shared Personal Data is being processed are still the ones listed in clause 2 of this Agreement;

(b) assessing whether the legal framework governing data quality, retention, and Data Subjects' rights are being complied with; and

(c) assessing whether personal data breaches involving the Shared Personal Data have been handled in accordance with this Agreement and the applicable legal framework.

12.3 Each Party reserves its rights to inspect the other Parties arrangements for the processing of Shared Personal Data and to terminate the Agreement where it considers that the other Party is not processing the Shared Personal Data in accordance with this Agreement.

13. Term and Termination

13.1 This Agreement shall take effect on the Commencement Date and shall continue in full force and effect unless it is terminated under clause 13.2 or clause 13.5.

13.2 Any Party may terminate this Agreement during its Term by giving written notice to the other Parties in accordance with clause 28. Such termination shall be effective on the expiry of all DSAs entered into before the date on which the notice is served, unless otherwise agreed to by the Parties in writing.

13.3 If any Party exercises the option to terminate under clause 13.2 and all DSAs have expired, this Agreement will terminate with immediate effect and no new DSAs shall be entered into.

13.4 If this Agreement is entered into after the Parties have begun sharing Personal Data with each other, it shall apply retrospectively to the Processing of such Personal Data from the date on which such sharing began.

13.5 The Data Discloser may suspend or terminate this Agreement with immediate effect by giving written notice to the other Parties in accordance with clause 28 if:

(a) the Data Receiver is in material breach of this Agreement and/or any Data Sharing Addendum, and that breach cannot be remedied;

(b) the Data Receiver is in material breach of this Agreement and/or any Data Sharing Addendum which can be remedied but the Data Receiver fails to do so within 30 days starting on the day after receipt of written notice from the SPoC;

(c) in respect of Shared Personal Data, the Data Receiver no longer has the legal basis to Process such Shared Personal Data;

(d) it becomes unlawful for the Data Receiver to perform all or any of its obligations under this Agreement; or

(e) there is a change to the Data Protection Legislation which materially affects the Data Discloser's powers to provide Personal Data to the Data Receiver.

13.6 On termination of this Agreement under clause 13.5, all existing DSAs shall terminate automatically.

13.7 The Parties shall not enter into any further DSAs after the date on which notice to terminate is served under clauses 13.2 or 13.5.

14. Resolution of disputes with Data Subjects or the Supervisory Authority

14.1 In the event of a dispute or claim brought by a Data Subject or the Supervisory Authority concerning the processing of Shared Personal Data against one or more Parties, the Parties will inform each other about any such disputes or claims, and will cooperate with a view to settling them amicably in a timely fashion.

14.2 The Parties agree to respond to any generally available non-binding mediation procedure initiated by a Data Subject or by the Supervisory Authority. If they do participate in the proceedings, the Parties may elect to do so remotely (such as by telephone or other electronic means). The Parties also agree to consider participating in any other arbitration, mediation or other dispute resolution proceedings developed for data protection disputes.

14.3 Each Party shall abide by a decision of a competent court of the Data Discloser's country of establishment or of the Supervisory Authority.

15. Warranties

15.1 Each Party warrants and undertakes that it will:

(a) Process the Shared Personal Data in compliance with the Data Protection Legislation;

(b) Make available on request to the Data Subjects who are third party beneficiaries a copy of this Agreement, unless the Agreement contains confidential information;

(c) Respond within a reasonable time and as far as reasonably possible to enquiries from the relevant Supervisory Authority in relation to the Shared Personal Data;

(d) Provide appropriate privacy information to Data Subjects, which includes details of the data sharing pursuant to this Agreement.

(e) Respond to requests by Data Subjects to exercise their rights in accordance with the Data Protection Legislation;

(f) Where applicable, maintain registration with all relevant Supervisory Authorities to process all Shared Personal Data for the Agreed Purpose; and

(g) Take all appropriate steps to ensure compliance with the security measures set out in clause 10 above.

15.2 The Data Discloser warrants and undertakes that it is entitled to provide the Shared Personal Data to the Data Receiver and it will take all reasonable steps to ensure that the Shared Personal Data are accurate.

15.3 The Data Receiver warrants and undertakes that it will not disclose or transfer Shared Personal Data outside the EEA.

15.4 Each Party warrants and undertakes that it has full capacity and authority to enter into and to perform its own obligations under this Agreement.

15.5 Except as expressly stated in this Agreement, all warranties, conditions and terms, whether express or implied by statute, common law or otherwise are hereby excluded to the extent permitted by law.

16. Allocation of cost

Each Party shall perform its obligations under this Agreement at its own cost.

17. Limitation of liability

17.1 Neither Party excludes or limits liability to the other Party for:

(a) fraud or fraudulent misrepresentation;

(b) death or personal injury caused by negligence;

(c) a breach of any obligations implied by section 12 of the Sale of Goods Act 1979 or section 2 of the Supply of Goods and Services Act 1982; or

(d) any matter for which it would be unlawful for the parties to exclude liability.

17.2 Subject to clause 17.1, neither Party shall in any circumstances be liable whether in contract, tort (including for negligence and breach of statutory duty howsoever arising), misrepresentation (whether innocent or negligent), restitution or otherwise, for:

(a) any loss (whether direct or indirect) of profits, business, business opportunities, revenue, turnover, reputation or goodwill;

(b) loss (whether direct or indirect) of anticipated savings or wasted expenditure (including management time); or

(c) any loss or liability (whether direct or indirect) under or in relation to any other contract.

18. Third party rights

18.1 Except as expressly provided in clause 7 (Data Subjects rights) and elsewhere in this Agreement, a person who is not a party to this Agreement shall not have any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement. This does not affect any right or remedy of a third party which exists, or is available, apart from that Act.

18.2 No one other than a Party to this Agreement, their successors and permitted assignees, shall have any right to enforce any of its terms.

19. Variation

No variation of this Agreement shall be effective unless it is in writing and signed by the Parties (or their authorised representatives).

20. Waiver

No failure or delay by a Party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

21. Severance

21.1 If any provision or part-provision of this Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed deleted, but that shall not affect the validity and enforceability of the rest of this Agreement.

21.2 If any provision or part-provision of this Agreement is deemed deleted under clause 21.1, the Parties shall negotiate in good faith to agree a replacement provision that, to the greatest extent possible, achieves the intended commercial result of the original provision.

22. Changes to the applicable law

If during the Term the Data Protection Legislation change in a way that this Agreement is no longer adequate for the purpose of governing lawful data sharing exercises, the Parties agree that the SPoCs will negotiate in good faith to review this Agreement in the light of the new legislation.

23. No partnership or agency

23.1 Nothing in this Agreement is intended to, or shall be deemed to, establish any partnership or joint venture between any of the Parties, constitute any Party the agent of another Party, or authorise any Party to make or enter into any commitments for or on behalf of any other Party.

23.2 Each Party confirms it is acting on its own behalf and not for the benefit of any other person.

24. Entire agreement

24.1 This Agreement (including all executed DSAs) constitutes the entire agreement between the Parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

24.2 Each Party acknowledges that in entering into this Agreement it does not rely on, and shall have no remedies in respect of any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in this Agreement.

24.3 Each Party agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misrepresentation based on any statement in this Agreement.

25. Further assurance

Each Party shall, and shall use all reasonable endeavours to procure that any necessary third party shall, promptly execute and deliver such documents and perform such acts as may reasonably be required for the purpose of giving full effect to this Agreement.

26. Force majeure

No Party shall be in breach of this Agreement nor liable for delay in performing, or failure to perform, any of its obligations under this Agreement if such delay or failure result from events, circumstances or causes beyond its reasonable control. In such circumstances the affected Party shall be entitled to a reasonable extension of the time for performing such obligations. If the period of delay or non-performance continues for three months, the Parties not affected may terminate this Agreement by giving 30 days' written notice to the affected Party.

27. Rights and remedies

Except as expressly provided in this Agreement, the rights and remedies provided under this Agreement are in addition to, and not exclusive of, any rights or remedies provided by law.

28. Notice

28.1 Any notice given to a Party under or in connection with this Agreement shall be in writing, addressed to the SPoCs and shall be:

(a) delivered by hand or by pre-paid first-class post or other next working day delivery service at its registered office (if a company) or its principal place of business (in any other case); or

(b) sent by email to the SPoC.

28.2 Any notice shall be deemed to have been received:

(a) if delivered by hand, on signature of a delivery receipt;

(b) if sent by pre-paid first-class post or other next working day delivery service, at 9.00 am on the second Business Day after posting or at the time recorded by the delivery service;

(c) if sent by email, at the time of transmission, or if this time falls outside business hours in the place of receipt, when business hours resume. In this clause 28.2(c), business hours means 9:00 am to 5:00 pm Monday to Friday on a day that is not a public holiday in the place of receipt.

28.3 This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution

29. Governing law

29.1 This Agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation shall be governed by and construed in accordance with the law of the respective jurisdictions of the United Kingdom for each Party to this Agreement.

30. Assignment and novation

30.1 No Party shall assign, novate, or otherwise dispose of or create any trust in relation to any or all of its rights, obligations or liabilities under this Agreement or any part of it without the prior written approval of the other Parties.

This Agreement has been entered into on the date stated at the beginning of it.

Schedule 1 Key legislative provisions and authoritative guidance

- The UK Data Protection Legislation
- The Health Service (Control of Patient Information) Regulations 2002

Schedule 2 Sample Template Data Sharing Addendum

Title	
Framework Agreement Reference	
DSA Reference	
Data Discloser	
Data Receiver	
Agreed Purpose	
Details of Personal Data being processed	
Details of Special Categories of Personal Data being processed	
Processing Restrictions	
Additional Details	
Term of data sharing	
Signed – Data Discloser	Date:
Signed – Data Receiver	Date:

Schedule 3 Appropriate technical and organisational security measures

1. Without prejudice to the Parties' other obligations in respect of information security, the Parties shall:

   1.1 having regard to the state of technological development, provide a level of security (including appropriate technical and organisational measures) appropriate to:

      1.2.1 the harm that might result from unauthorised or unlawful processing of Shared Personal Data or accidental loss, destruction or damage of such Shared Personal Data; and

      1.2.2 the nature of the Shared Personal Data.

   1.2 ensure that access to the Shared Personal Data is limited to those personnel who need access to the Shared Personal Data to meet the Parties obligations under this Agreement;

   1.3 take reasonable steps to ensure the reliability of the Parties personnel who have access to the Shared Personal Data.

   1.4 inform the other Party as soon as reasonably practicable of any particular risk to the security of the Shared Personal Data of which it becomes aware, and of the categories of Data and individuals which may be affected;

2 The Parties shall implement and maintain security standards, facilities, controls and procedures appropriate to the nature of the Shared Personal Data held by it and the harm that would be caused by its loss or disclosure including a comprehensive and up-to-date data protection policy. The Parties shall ensure that all their personnel who have access to the Shared Personal Data shall comply with the obligations upon them contained in the data protection policy.

3 Each Party shall ensure:

   3.1 that it has properly configured access rights for its personnel including a well-defined joiners and leavers process to ensure access rights to the Shared Personal Data are properly managed;

   3.2 that it has proper controls in place to make sure that complex alphanumeric passwords are required for access to the Shared Personal Data and that training is provided in relation to the need to keep such passwords secure;

   3.3 it has in place procedures to identify wrongful use of Shared Personal Data, including the monitoring of wrongful access to Shard Personal Data;

   3.4 suitable and effective authentication processes are established and used to protect Shared Personal Data;

   3.5 Shared Personal Data is backed up on a regular basis and that all back up data is subject to such vigorous security procedures as are necessary in order to protect data integrity, such security measures being commensurate to the nature of the data. The Parties shall take particular care when transporting

backup data and other personal information and shall ensure such backup data and other personal information is transported in a safe and secure manner;

3.6 Shared Personal Data transferred electronically is encrypted;

3.7 information stored on laptops or other portable media is encrypted and that the Parties maintains an accurate, up to date asset register, including all such portable media used to process the Shared Personal Data;

3.8 that suitable physical security measures are established commensurate to the harm that could result from the unlawful disclosure of the Shared Personal Data. Such physical security measures shall be as identified in the Parties data protection policy;

3.9 without prejudice to the Parties obligations in relation to the disposal of the Shared Personal Data, all Shared Personal Data which is disposed of must be disposed of pursuant to the Parties policy for the disposal of data identified in the data protection policy, including the disposal of assets containing personal data, a copy of which policy shall be provided, on request, to the other Party;

3.10 the Parties establishes and maintains adequate data security compliance policies and audits its use of personal data in compliance with its data security policies on a regular basis and in any event annually; and

4 All data transfers will be via access to systems managed and maintained by the Data Discloser or via a secure data transfer mechanism. Any and all electronic transfers will be encrypted with decryption passwords communicated by alternative method to data transfer.

Schedule 4 Deletion Procedure

A data destruction certificate must be used to notify the Data Discloser of the destruction of the Shared Personal Data.

The terms of this Agreement require confirmation that all the physical and logical data detailed on a data destruction certificate has been destroyed, including the original data and any copies in whole or in part.

The following standards and guidelines are the minimum basis for data decommissioning or destruction:

National Cyber Security Centre (NCSC) guidance on end-user device reset procedures: https://www.ncsc.gov.uk/guidance/end-user-device-guidance-factory-reset-and-reprovisioning

NCSC guidance on secure sanitisation of storage media: https://www.ncsc.gov.uk/guidance/secure-sanitisation-storage-media

Signed by

for and on behalf of **UKHSA**

Date**: 30/06/2022**

[redacted], Deputy Director for Info Mgmt & Data Governance (also covering Privacy)

Signed by

for and on behalf of **London Borough of Camden**

Date:

[redacted], Public Health Intelligence Lead